

THE SEDONA CONFERENCE WORKING GROUP SERIES

The Sedona Conference Working Group Series

Authoritative, Meaningful, and Balanced Commentary. The Sedona Conference Working Group Series was launched in 2002 and represents the evolution of The Sedona Conference from a forum for advanced dialogue to an open think-tank confronting some of the most challenging issues faced by our legal system today. The first Working Group (WG1) met on October 17-18, 2002, and was dedicated to the development of guidelines for electronic document retention and production. The impact of its first publication, *The Sedona Principles: Best Practices Recommendations & Principles for Addressing Electronic Document Production*, was immediate and substantial. The *Principles* was cited in the Advisory Committee on Civil Rules Discovery Subcommittee Report on Electronic Discovery less than a month after publication of the first draft, and was cited in a seminal eDiscovery decision in the Southern District of New York less than a month after that. As noted in the June 2003 issue of Pike & Fischer's *Digital Discovery and E-Evidence*, "The *Principles*...influence is already becoming evident." The rest, including enactment of the federal rules on eDiscovery in 2006, is, as they say, history.

The Sedona Conference Working Group Series Membership Program offers a vehicle for those who wish to support our mission and interact with others interested in tipping point issues in the areas of electronic document retention and production; international electronic information management, discovery, and disclosure; patent damages and patent litigation best practices; data security and privacy liability; and trade secret litigation. Membership in the Working Group Series allows any interested jurist, attorney, academic,

consultant, or expert to participate in Working Group activities, including brainstorming groups, drafting teams, Working Group meetings, and dialogue on current works-in-progress.

As a member of the Sedona Conference Working Group Series you will have access to the Working Group Members Only areas of this web site, where member drafts of works-in-progress are posted and available for member comment. If you “opt in” to the roster for a specific Working Group, you will receive announcements about that particular Working Group's events, notices seeking applications for drafting teams and brainstorming groups, and notices regarding draft works-in-progress open for member comment. [Click here to join The Sedona Conference Working Group Series.](#)

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We currently have seven active Working Groups, each described below.

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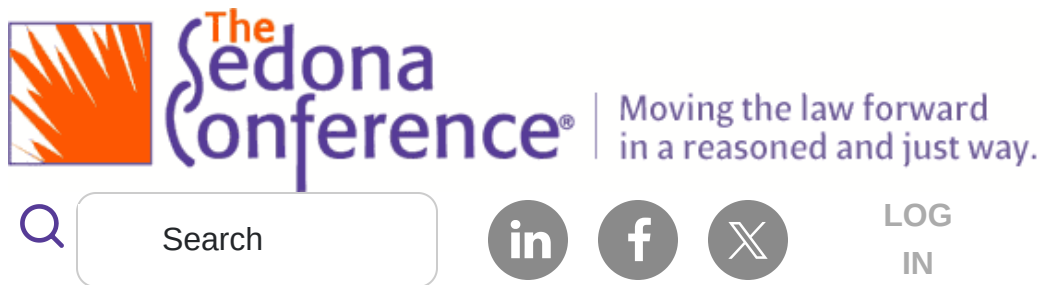
Electronic Document Retention and Production - Working Group 1

The mission of Working Group 1 is to develop principles, guidance and best practice recommendations for information governance and electronic discovery in the context of litigation, dispute resolution and investigations. The group released the first public comment draft of The Sedona Principles in March 2003, and the impact was immediate and substantial. Within a few weeks, The Sedona Principles was cited by the Civil Rules Advisory Committee Discovery Subcommittee as one of the reasons to focus on possible amendments to the Federal Rules of Civil Procedure, and it was cited in the seminal Zubulake case in the Southern District of New York. Since then, WG1 has published updated editions of The Sedona Principles and several companion works, including guidelines for electronic document management, an authoritative glossary of e-discovery and electronic records management terms, several commentaries on e-discovery related topics, and cooperation guidance for trial lawyers, in-house counsel, and the judiciary.

[Enter WG1 Area](#)

International Electronic Information Management, Discovery, and Disclosure - Working Group 6

The mission of Working Group 6 is to develop principles, guidance and best practice recommendations for information governance, discovery and disclosure involving cross-border data transfers related to civil litigation.



Principles was released in early 2008 (in both English and French) and was immediately recognized by federal and provincial courts as an authoritative source of guidance for Canadian practitioners. It was explicitly referenced in the Ontario Rules of Civil Procedure and practice directives that went into effect in January 2010. The second edition of The Sedona Canada Principles was published in 2015. Working Group 7 provides materials and speakers for The Sedona Conference InstituteSM program and bar association conferences across the country.

[Enter WG7 Area](#)

Patent Litigation Best Practices - Working Group 10

The mission of Working Group 10 is to develop best practices and recommendations for patent litigation case management.

[Enter WG10 Area](#)

Data Security and Privacy Liability - Working Group 11

The mission of Working Group 11 is to identify and comment on trends in data security and privacy law, in an effort to help organizations prepare for and respond to data breaches, and to assist attorneys and judicial officers in resolving questions of legal liability and damages. The Working Group will develop best practices drawn from civil litigation arising from data security and privacy violations, legislative governance of data security and privacy, and regulatory enforcement of data security and privacy laws, in order to help organizations take action before and after a data breach to minimize their legal exposure, to inform affected parties of their rights and responsibilities, and to assist in the coordination of regulatory, law enforcement, and judicial responses to data breach and related incidents.

[Enter WG11 Area](#)

Trade Secrets - Working Group 12

The mission of Working Group 12 is to develop consensus and nonpartisan principles for managing trade secret litigation and well-vetted guidelines for consideration in protecting trade secrets, recognizing that every organization has and uses trade secrets, that trade secret disputes frequently intersect with other important public policies such as employee mobility and international trade, and that trade secret disputes are litigated in both state and federal courts.

[Enter WG12 Area](#)

AI and the Law - Working Group 13

Consistent with the overarching Sedona Conference mission – “moving the law forward in a reasoned and just way” – the mission of Working Group 13, in coordination with other Sedona Working Groups, is to (i) frame the legal issues presented by Artificial Intelligence (“AI”), (ii) analyze the potential impacts of AI on the law, legal practice, organizational operations, governance, and compliance, and (iii) articulate legal principles and best practices for the development and implementation of AI.

[Enter WG13 Area](#)

Inactive Working Groups

The following Working Groups are no longer active; however, you can download the Working Group publications from the [publications page](#).

- Protective Orders, Confidentiality and Public Access - Working Group 2
- The Role of Economics in Antitrust - Working Group 3
- Intersection of the Patent and Antitrust Laws - Working Group 4
- The Markman Process and Claim Construction - Working Group 5
- Mass Torts and Punitive Damages - Working Group 8
- Patent Damages and Remedies - Working Group 9

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ABOUT

The Sedona Conference (TSC) is a nonpartisan, nonprofit 501(c)(3) research and educational institute dedicated to the advanced study of law and policy in

the areas of antitrust law, complex litigation, intellectual property rights, and data security and privacy law. The mission of TSC is to move the law forward in a reasoned and just way through the creation and publication of nonpartisan consensus commentaries and through advanced legal education for the bench and bar.

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